

		insufficient to support the interference claims against her. Plaintiffs fail to allege a valid contract with a third party with which Kristy interfered or an existing relationship that is likely to produce economic benefits in the future. (<i>Quelamine Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55; <i>Korea Supply Co. v. Lockheed Martin Corp.</i> (2003) 29 Cal.4th 1134, 1164.) An allegation about interference with unnamed "clients within SYW's pipeline, about 10-20 clients starting services" is insufficient. (<i>Korea Supply Co. v. Lockheed Martin Corp.</i>, <i>supra</i>, 29 Cal.4th at 1164 [the tort does not protect the expectation "that a potentially beneficial relationship will arise"].) Furthermore, as discussed above, CUTSA preempts the 9th through 13th causes of action. The demurrer is thus SUSTAINED without leave to amend as to these defendants. Padron: The only facts alleged against Padron in the 4AC is that she was "retained as a consultant" by Tran, Garcia and Ascend to "convert, plagiarize, duplicate, repackage" SYW's trade secrets and confidential information. Notably, misappropriation requires acquisition or use of a trade secret by a person knows or has reason to know the trade secret was acquired by improper means, and receipt of stolen property requires knowledge that the property was stolen. (Civ. Code § 3426.1, subd. (b), Pen. Code § 496.) There are no facts showing Padron's knowledge or constructive knowledge that the information she purportedly converted was SYW's trade secrets and that they were stolen and/or acquired by improper means. Furthermore, as discussed above, CUTSA preempts the 9th through 13th causes of action. The demurrer is thus SUSTAINED with 20 days' leave to amend as to Padron. Counsel for Defendants shall give notice of this ruling.
13	Bui v. Elliot	Cont. to 9/26
14	Bui v. Elliot	Cont. to 9/26
15	Trejo v. Trejo	O/C
16	Twining vs. Tarvin	Defendant Gina Clayton Tarvin's ("Defendant") Motion for Attorney Fees and Costs ("Motion") is GRANTED. Defendant was the prevailing party on an anti-SLAPP motion filed against plaintiff Edward "Butch" Twining's ("Plaintiff") Complaint, and judgment in favor of Defendant was entered thereafter. (ROA 92, 93.) The prevailing party on an anti-SLAPP motion is entitled to recover reasonable attorney fees incurred on the motion. (Civ. Proc. Code § 425.16; <i>Ketchum v. Moses</i> (2001) 24 Cal. 4th 1122, 1131.) Defendant is only permitted to recover fees and costs incurred in bringing the anti-SLAPP motion and the present motion for attorney fees, and not all of the fees incurred throughout an entire lawsuit. (<i>Lafayette Morehouse, Inc. v. Chron. Publ'g Co.</i> (1995) 39 Cal. App. 4th 1379, 1383.) Multipliers are permitted in attorney fee awards on anti-SLAPP motions. (<i>Ketchum, supra</i>, 24 Cal. 4th at 1136.) There are multiple factors the court may consider when determining whether a multiple should apply. (<i>Serrano v. Priest</i> (1977) 20 Cal. 3d 25, 49.)

The prevailing party in an action is also permitted to recover certain costs. (Civ. Proc. Code §§ 1032 and 1033.5.)

Defendant requests a total attorney fee award of \$139,310.50, which includes the fees incurred pre-judgment multiplied by 1.45x; a multiplier on the post-judgment fees was not sought. The court has reviewed the hours billed and found some fees to be improper and/or excessive. Specifically, the court strikes the fees billed related to Plaintiff's motion for discovery as those fees were not incurred on the anti-SLAPP motion. The court will permit the fees billed related to Plaintiff's ex parte application to continue the hearing on the anti-SLAPP motion as those are related. The court also strikes certain billing related to meetings between co-defense counsel.

The court finds that a 1.45x multiplier on the pre-judgment fees is warranted as this matter involved difficult freedom of speech issues wherein Plaintiff sought \$25 million from Defendant, the case was taken on a contingency fee basis with no apparent external funding, and the case was efficiently ended at an early stage.

The total attorney fee award in favor of Defendant and against Plaintiff is \$118,102, which is broken down as:

Attorney / Staff:	Rate:	Reas. Hrs.:	Total Reas. Fees:	Multiplier (1.45x)
Haden	\$250	2.2	\$550	\$797.50
D'Arcy	\$475	4.2	\$1,995	\$2,892.75
Resnick (anti-SLAPP)	\$600	4.7	\$2,820	\$4,089
Resnick (post judg.)	\$600	1.0	\$600	\$600 (no mult.)
Murdock	\$600	16.3	\$9,780	\$14,181
Gurwell (anti-SLAPP)	\$650	12.1	\$7,865	\$11,404.25
Gurwell (post judg.)	\$650	3.5	\$2,275	\$2,275 (no mult.)
Fink (anti-SLAPP)	\$750	55	\$41,250	\$59,812.50
Fink (post judg.)	\$750	29.4	\$22,050	\$22,050 (no mult.)
Total:		115.80		\$118,102

Defendant is also awarded the requested costs of \$1,857.05 as there was no opposition to those items.

The combined attorney fee and cost award in favor of Defendant and against Plaintiff is \$119,959.05.

		Defendant to give notice.
17	Stassi v. Indelicato	Tentative pending.
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